

IN THE SENATE

SENATE BILL NO. 1441

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO A MEMORANDUM OF AGREEMENT WITH IMMIGRATION AND CUSTOMS ENFORCEMENT; AMENDING CHAPTER 6, TITLE 19, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 19-626, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING LAW ENFORCEMENT ENTERING INTO A MEMORANDUM OF AGREEMENT WITH IMMIGRATION AND CUSTOMS ENFORCEMENT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 6, Title 19, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 19-626, Idaho Code, and to read as follows:

19-626. MEMORANDUM OF AGREEMENT WITH IMMIGRATION AND CUSTOMS ENFORCEMENT. (1) As used in this section:

(a) "Enforcement and removal operations" means the directorate of United States immigration and customs enforcement under the department of homeland security that manages all aspects of the immigration enforcement process, including the identification, arrest, detention, and removal of aliens who are subject to removal or are unlawfully present in the United States.

(b) "Immigration and customs enforcement" means the federal law enforcement agency under the department of homeland security, with the primary mission to promote homeland security and public safety through criminal and civil enforcement of federal laws governing border control, customs, trade, and immigration.

(c) "Law enforcement agency" means any law enforcement agency of any political subdivision of the state, including any municipal police department or county sheriff's office.

(d) "Section 287(g)" refers to section 287(g) of the immigration and nationality act, 8 U.S.C. 1357(g), that permits the delegation of certain immigration enforcement functions to local law enforcement agencies and that enables specially trained local peace officers to perform specific functions relating to the investigation, apprehension, or detention of noncitizens during a predetermined time frame and under federal oversight by immigration and customs enforcement.

(2) Except as provided in subsection (3) of this section, each law enforcement agency in this state shall make an application for a section 287(g) program for which the local or county law enforcement agency is eligible, including but not limited to the jail enforcement model and the warrant service officer model operated by the department of homeland security. Participation in such models and programs shall be required only to the extent that the necessary resources for participation are reasonably available to the law enforcement agency.

1 (3) Upon a specific, written finding of fact by the county commission-
2 ers for a county sheriff's office or by the city council for a municipal po-
3 lice department that establishes that entering into a section 287(g) memo-
4 randum of agreement would hinder a county or local law enforcement agency's
5 duty to provide other necessary services required by law, such agency may opt
6 out of the requirements of subsection (2) of this section.

7 (4) If a law enforcement agency is unable to enter into a section 287(g)
8 memorandum of agreement pursuant to subsection (3) of this section or is lim-
9 ited in its participation pursuant to subsection (2) of this section, such
10 agency shall publish, and forward to the United States department of home-
11 land security, a statement declaring the reasons for its inability to enter
12 into the memorandum or for its limited participation and any efforts made to
13 establish alternate cooperation with enforcement and removal operations of
14 immigration and customs enforcement.

15 SECTION 2. An emergency existing therefor, which emergency is hereby
16 declared to exist, this act shall be in full force and effect on and after
17 July 1, 2026.